

City Contract No. _____

PROFESSIONAL SERVICES AGREEMENT
for
Cheyenne Depot Museum: Various Projects 2025

This Professional Services Agreement (“Agreement”) is made and entered into by and between the City of Cheyenne, located at 2101 O’Neil Avenue, Cheyenne, Wyoming 82001 (“City”), and TDSi - The Design Studio, inc., located at 1610 Pioneer Avenue, Cheyenne, Wyoming 82001 (“Consultant”). This Agreement shall become effective upon the date of the last signature affixed hereto.

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK

The Consultant agrees to provide services as described by, and in accordance with, the Scope of Work attached hereto as Exhibit A, incorporated by reference and expressly made a part hereof.

2. TIME OF PERFORMANCE

The work included in this Scope of Work will be completed in three (3) phases. The Consultant shall perform its services as expeditiously as is consistent with such professional skill and care and the orderly progress of the Project. Anticipated schedule is as follows: **Design Phase** – Completed on or before August 1, 2025; **Bidding/Negotiation Phase** – Completed on or before October 1, 2025; **Construction Phase** – Completed between October 1, 2025, and March 20, 2026.

3. COMPENSATION

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant a not to exceed amount of one hundred sixty-seven thousand five hundred thirty-nine dollars (\$167,539.00) as stated in Exhibit A.

4. CONSULTANT RESPONSIBILITY

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Upon notice to the Consultant, the Consultant will, without additional compensation, correct those services not meeting such a standard.

5. COMPLIANCE WITH LAWS

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

6. DRUG-FREE WORKPLACE

In compliance with the Drug-Free Workplace Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers, and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

7. INDEMNIFICATION/HOLD HARMLESS

To the fullest extent permitted by law, Consultant shall indemnify the City of Cheyenne, its officers, directors, partners, employees, and representatives, from and against losses, damages, and judgments arising from claims by third parties, including reasonable attorneys' fees and expenses recoverable under applicable law, but only to the extent they are found to be caused by a negligent act, error, or omission of Consultant or Consultant's officers, directors, members, partners, agents, employees, or subconsultants in the performance of services under this Agreement.

8. INSURANCE REQUIREMENTS

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness, or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties

under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an “occurrence” policy.

If this coverage is provided pursuant to a “claims made” policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant’s services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said “claims made” coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates “claims made” coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period (“tail coverage”) which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as **an Additional Insured** by endorsement on its insurance policies and shall provide the City with a copy of the endorsements. This requirement does not apply to workers’ compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

9. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES (49 C.F.R. Part 26)
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin, or sex.
10. MONTHLY REPORT
With every monthly billing, Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.
11. INDEPENDENT CONSULTANT
The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.
12. TAXES
The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts, and obligations incurred by and in connection with its operations under this Agreement.
13. DEFAULT
Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.
14. REMEDIES
In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:
 - a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
 - b. Treat the Agreement as continuing and require specific performance.

15. TERM AND TERMINATION

The term of this Agreement shall be from date of execution to March 20, 2026. The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. OWNERSHIP OF DOCUMENTS AND WORK PRODUCT

All deliverables by the Consultant, all work product of the Consultant, all notes, calculations, memoranda, or any other documentation generated by the Consultant pursuant to the scope of this Agreement, shall be the property of the City of Cheyenne and shall be provided to the City of Cheyenne immediately upon request.

21. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

22. FORCE MAJEURE.

The performance of the Agreement by either party shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this Agreement. The Agreement may be cancelled by either party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other party.

23. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

24. OWNER'S RESPONSIBILITIES

The Owner shall provide full information about the objectives, schedule, constraints, and existing conditions of the Project, and shall establish a budget that includes reasonable contingencies and meets the Project requirements. The Owner shall provide decisions and furnish required information as expeditiously as necessary for the orderly progress of the Project. The Architect shall be entitled to rely on the accuracy and completeness of the Owner's information. The Owner shall furnish consulting services not provided by the Architect, but required for the Project, such as environmental and construction materials testing services. The Owner shall employ a Contractor, experienced in the type of Project to be constructed, to perform the construction Work and to provide price information.

Based upon the written approval by the owner of the applicable design phase, the Architect shall be authorized to proceed to the subsequent design phase. This written authorization shall include all specific requests and requirements as set forth by the owner in an effort to incorporate any and all changes as early as possible within the project scope. It is imperative that the owner makes a timely review at each phase of the project. Should additional design and/or rework be required due to project direction or project scope change as requested or required by the owner, the architect may request approval of additional services prior to proceeding. Until written approval is received from the owner, the architect will stop work, which may result in delay. Such a delay shall not be the burden of the Architect accordingly.

25. ENTIRETY OF AGREEMENT

This Agreement consisting of eight (8) pages, and Exhibit A consisting of twelve (12) pages, contain the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

City of Cheyenne

(SEAL)

By: _____
Patrick Collins, Mayor

Attest:

Kylie Soden, City Clerk

Date: _____

TDSi - The Design Studio, inc.

By: _____

Print Name: _____

Date: _____

Exhibit A



Proposal for Professional Design Services for
Cheyenne Depot Museum:
Various Projects 2025
Cheyenne, Wyoming

November 27, 2024

City of Cheyenne
Community Recreation and Events Department
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

ATTN: Jason Sanchez – Director, Community Recreation & Events

**RE: Proposal for Professional Architecture and Engineering Services for
CHEYENNE DEPOT MUSEUM: VARIOUS PROJECTS - 2025**

Jason:

Thank you again for allowing our firm to provide this proposal for Professional Services for the various projects at the Historic Cheyenne Depot and Depot Plaza. We would be honored to have the chance to work with you once again. If, as you review our proposal, you have any questions, please do not hesitate to contact me. We would be glad to meet to further discuss our approach to the project.

Thank you again,

Will Byers, TDSi Associate, Associate AIA

Will@tdsi.us

THIS PAGE INTENTIONALLY LEFT BLANK

Design Scopes:

1. Scope: Depot 2nd and 3rd floor interior finishes update/remodel.
 - a. Reconfiguration/remodel of Chamber of Commerce Offices on 2nd Floor:
 1. Removal of existing interior partial height partitions to create open office concept. Relocate existing electrical receptacles/data to perimeter wall locations where possible and/or new floor box locations. Assumes no new circuits.
 2. Updated entrance/reception and CEO Office configuration with glass partitions/walls as determined during design. Reconfiguration of ceiling as required.
 3. Rebalance/Relocate existing HVAC diffusers to accommodate new layout. Existing HVAC infrastructure including fan coil units to remain.
 - b. Reconfiguration of 2nd floor work/break room to create new separate office area from break room.
 1. Break room casework to remain, with new sink and faucet. New flooring/paint.
 2. Casework on West side of room to be removed for new office area.
 3. Updated light fixtures in acoustical grid ceiling in areas of work (one for one replacement with LED fixtures).
 4. Reconfigure HVAC into two separate zones for each 'new' room. Existing fan coil units to remain.
 - c. Review of existing HVAC in 2nd floor board room including controls to determine feasibility of increased cooling capability via controls adjustments.
 - d. New flooring selections - Carpet or LVP as determined during design.
 - e. New paint selections in areas of remodel and/or as determined during design.
 1. Note: Existing wood trim/wainscot to remain throughout 2nd/3rd Floor areas.
 2. Note: Existing ceiling configurations to remain, unless noted otherwise.
 - f. Anticipated Professional Services Scope: Architectural, Mechanical, Electrical.
 - i. Note assumes no structural modifications in any area.
 - g. Estimated probable construction cost: \$400,000
2. Scope: Update access hatch and ladder to clock tower area (accessed via Chamber of Commerce offices).
 - a. Access hatch shall have gas assist opening, and ladder shall be aluminum with applicable fall protection as required by building code and OSHA.
 - b. Anticipated Professional Services Scope: Architectural, Electrical (if required).
 - c. Estimated probable construction cost: \$50,000
3. Scope: Determination of exterior windows requiring repair/repaint/reseal throughout entire building. Includes identification of deteriorated trim, and photo elevations and applicable notes of windows requiring repair. Includes Drone flight of building to determine areas requiring repair. Scope is for exterior only.
 - a. Anticipated Professional Services Scope: Architectural.
 - b. Estimated probable construction cost: \$300,000
4. Scope: Determination of areas requiring masonry repointing at the exterior of the building. Includes photographic elevations and applicable notes of locations requiring repointing. Photographs and video will be provided via Drone flight of building.
 - a. Anticipated Professional Services Scope: Architectural.
 - b. Estimated probable construction cost: \$50,000
5. Scope: Depot plaza concrete removal and replacement with brick pavers.
 - a. New brick pavers are anticipated to be a maximum of 60% of the existing Depot Plaza area, with the remainder being concrete.

- i. Survey of existing depot plaza at each concrete control joint location to determine if existing plaza is ADA compliant, and make necessary adjustments if necessary to bring plaza into ADA compliance where required.
- b. Scope also includes custom designed shade structure (Structural steel with metal roofing panels) adjacent to Splash Pad at elevated patio section. It is anticipated to include lighting/receptacles at shade structure (if feasible).
- c. Includes geotechnical subsurface exploration and report will be included to determine soil bearing capacity.
 - i. Existing private utilities will need to be located by City/Others prior to geotechnical exploration.
- d. Anticipated Professional Services Scope: Architectural, Civil, Structural, Electrical.
- e. Estimated probable construction cost: \$750,000

Total ESTIMATED Construction cost for items 1-5: \$1,550,000

It is recognized that neither the Architect nor the Owner has control over the cost of labor, materials or equipment, over the Contractor's or Subcontractor's methods of determining bid prices, or over competitive bidding, market or negotiating conditions. Accordingly, the Architect cannot and does not warrant or represent that bids or negotiated prices will not vary from any Estimates of Probable Construction or Renovation Cost or any evaluation prepared by the Architect.

Anticipated Schedule :

- i. Design: January 2025 – May 2025
- ii. Bidding: Summer 2025
- iii. Construction: Fall 2025 - Spring 2026

SCOPE MATRIX:

DESIGN PHASE SERVICES (35% SD, 65% DD and 100% CD Documents)				Architect	Civil Engineer	Structural Engineer	Mechanical Engineer	Electrical Engineer
Develop a design solution based upon the approved project requirements				Yes	Yes	Yes	Yes	Yes
Meetings with Owner to review the design solution options								
Phase:	35%	Location:	Cheyenne	Yes	No	No	No	No
Phase:	65%	Location:	Cheyenne	Yes	Yes	No	No	No
Phase:	100%	Location:	Cheyenne	Yes	No	No	No	No
Synthesize the aspects of the design solution options preferred by the Owner to develop a final solution				Yes	Yes	Yes	Yes	Yes

Upon the Owner's approval of the design solution, prepare Construction Documents indicating requirements for construction of the project, anticipated to include:							
	Drawings		Yes	Yes	Yes	Yes	Yes
	Technical specifications for materials, systems, etc.		Yes	Review	Yes	Yes	Yes
	Written Bidding Requirements		No	No	No	No	No
Total Meetings with Owner (Maximum)			5	1	0	0	0
Total Site Visits (Maximum)			5	2	1	1	1
BIDDING/NEGOTIATION PHASE SERVICES			Architect	Civil Engineer	Structural Engineer	Mechanical Engineer	Electrical Engineer
Assist the Owner in obtaining proposals and award of the Contract for Construction			Yes	NA	NA	NA	NA
Distribution of Bid Documents will be via:	CDQuest.com ?	NA	NA	NA	NA	NA	NA
	Architect?	NA	NA	NA	NA	NA	NA
	Owner?	Yes	NA	NA	NA	NA	NA
Coordination of bidding, including:							
	Answering Bidders questions		Yes	Yes	Yes	Yes	Yes
	Processing Bidder's Request for Interpretation of Documents and Requests for Product Substitutions		Yes	Yes	Yes	Yes	Yes
	Preparation of Addenda, if required		Yes	Assist	Assist	Assist	Assist
Attend Pre-Bid Meeting	Location:	Cheyenne	Yes	No	No	No	No
Prepare Bid Tabulation Form?			NA	NA	NA	NA	NA
Attend Bid Opening	Location:	Cheyenne	Yes	NA	NA	NA	NA
Evaluation of bids and recommendation to Owner regarding award of bid			Yes	Assist	Assist	Assist	Assist
Prepare Notice of Intent to Award Contract?			Assist	NA	NA	NA	NA
Prepare Owner/Contractor Agreement?			Yes	NA	NA	NA	NA
Review Contractor's Post Bid Submittals?			Assist	NA	NA	NA	NA
Meetings with Owner (Bid Review)			1	0	0	0	0
Site Visits			0	0	0	0	0

CONSTRUCTION ADMINISTRATION (CA) PHASE			Architect	Civil Engineer	Structural Engineer	Mechanical Engineer	Electrical Engineer
Maximum Length of Construction:			20 weeks				
Attend Pre-Construction Conference	Location:	Cheyenne	1	1	0	0	0
Owner/Architect /Contractor (OAC) Meetings	Frequency:	Every 2 Weeks	Yes, with Periodic Site Visits	No	No	No	No
Periodic site visits over the construction phase (generally with OAC)			10 max over 20 weeks	4 max	1 max	1 max	2 max
Preparation of Field Report with photographs or other documentation as appropriate for each site visit			Yes	Yes	Yes	Yes	Yes
Review of contractor's submittals			Yes	Yes	Yes	Yes	Yes
Respond to Requests for Information (RFI's) from the contractor (Reasonable Amount)			Yes	Yes	Yes	Yes	Yes
Substantial Completion Inspections			1 max	1 max	1 max	1 max	1 max
Preparation of Punch List			1 max	1 max	1 max	1 max	1 max
Final Completion Inspections			1 max	1 max	0	0	0
Additional Meetings with Owner			1	0	0	0	0
POST CONSTRUCTION PHASE			Architect	Civil Engineer	Structural Engineer	Mechanical Engineer	Electrical Engineer
Integration of Contractor Provided Record Drawing Information into CAD Drawings			No	No	No	No	No
Warranty Inspections							
11 th Month Inspections			1	0	0	0	0
Meetings with Owner (if required)			1	0	0	0	0

SCOPE OF SERVICES

The general description of the Scope of Services for this project is as follows:

- Architectural services for:
 - Site:
 - Cheyenne Depot Museum and Depot Plaza
 - Total Area: Existing building area to remain.
 - Height of Buildings: Existing structure to remain.
 - Number of buildings: Existing to remain.

- Planning and Zoning Approvals:
 - Site Plan Review: Not included or anticipated.
 - Engineering Plan Review: Not included or anticipated.
- Surveying:
 - Included for Exterior Improvements on Depot Plaza only.
- Civil Design:
 - Included for Exterior Improvements on Depot Plaza only.
 - Does not include any drainage or storm water scope.
- Drainage Study:
 - Not Included or anticipated.
- Traffic Study:
 - Not Applicable.
- Structural System:
 - Existing building structure to remain.
 - New free standing shade structure on Depot Plaza.
- HVAC:
 - Existing HVAC system to remain.
- Plumbing:
 - Plumbing layout is anticipated to remain in 2nd floor break room. Review of fixture heights, and ADA requirements will be evaluated as part of the project. If fixture's locations are required to change, design will accommodate.
- Fire Sprinkler System:
 - Existing Fire Suppression to remain. No changes are anticipated.
- Electrical:
 - Electrical scope is as noted in phased descriptions.
- Acoustical Design/ Mechanical Noise & Vibration Control:
 - Not Included.
- Project Delivery: Design-Bid-Build.
 - Depending on final schedule and coordination with the Depot, the project is anticipated be released as a single bid package, for award to one General Contractor, and bidding and construction shall immediately follow completion of construction documents.
 - Total length of construction phase services total is a maximum of 20 weeks from selected Contractor's Notice To Proceed date.

CONSULTANTS

- The services of following outside consultants, as defined in the Scope of Services noted above, are included in this proposal and the fees noted herein:

CIVIL ENGINEER		Darci Hendon, PE, Principal Theena Engineering Cheyenne, Wyoming
STRUCTURAL ENGINEER		Jera Likely, PE, Senior Engineer Martin / Martin Wyoming Cheyenne, Wyoming
MECHANICAL ENGINEER		Justin Montgomery, PE, Principal DesignPoint Engineering Cheyenne, Wyoming
ELECTRICAL ENGINEER		Mike Gust, PE, Principal Gust Engineering Cheyenne, Wyoming
GEOTECHNICAL CONSULTANT		Taylor Olson, PE, Inberg-Miller Engineers Cheyenne, Wyoming

If during the course of the project, the services of additional outside consultants are deemed necessary, are requested by the Owner, or are required by the authorities having jurisdiction over the Project, such services will be considered a Reimbursable Expense. We will coordinate with the Owner to add consultants to our team that are mutually agreeable to both the Owner and our firm.

PROFESSIONAL SERVICES FEES

- For this project we propose to provide the Architectural and Engineering services described herein, based upon the noted scope included with each phase.

ARCHITECTURAL AND ENGINEERING PROFESSIONAL SERVICES FEES:

- 35% Documents Phase (Schematic Design (SD) Phase) \$38,431
- 65% Documents Phase (Design Development (DD) Phase) \$43,443
- 100% Documents Phase (Construction Documents (CD) Phase)..... \$62,658
- Bidding/Negotiation (BN) Phase..... \$4,177
- Construction Administration (CA) Phase \$18,830
- Post Construction (PC) Phase \$0
- TOTAL**..... **\$167,539**

Plus Reimbursable Expenses

TDSi RATE SCHEDULE

- TDSi Hourly Rates are as follows for 2025:

Staff Member	Rate Per Hour
○ Randy Byers, AIA, LEED AP ^{BD+C} – TDSi Principal, Architect.....	\$ 215
○ Clint Taylor, AIA, PE, LEED AP ^{BD+C} - TDSi Associate, Architect	\$ 165
○ Will Byers, AIA Associate - TDSi Associate, Project Manager/Intern Architect	\$ 140
○ Stephanie Lowe, Project Manager, Historic Preservation Specialist	\$ 130
○ Legal testimony will be invoiced at 2 times the above noted hourly rate; Research and consultation as an Expert Witness, and time giving depositions will be billed at 1.5 times the above noted hourly rate.	

ADDITIONAL SERVICES

- Additional Services will be invoiced at the Hourly Rates current at the time the services are provided.
- Additional Services will be invoiced at the Hourly Rates current at the time the services are provided. If the professional services covered by this proposal have not been completed within the stated duration noted, through no fault of the Architect, additional services shall apply. Architect shall give written notice to the owner if additional services are anticipated, prior to additional services occurring.

CONSULTANT SERVICES

- Consultant fees not included within basic scope of services, and reimbursable expenses will be billed at cost plus 10% markup.

REIMBURSABLE EXPENSES

- Expenses incurred in connection with the project will be billed at actual cost plus a 10% markup.
- Examples of such expenses are:
 - out of town travel and subsistence expenses;
 - reproduction costs for documents for other than the Architect's use or record;
 - postage and shipping charges.

*Hourly Rates and Reimbursable Expenses Rates are subject to review
and change on a periodic basis, or as circumstances require.*

BILLING SCHEDULE

- E-Invoice Format - All invoices will be emailed to the Client, with an option for the Client to pay online.

PRODUCTS OF SERVICE

- In general, the anticipated Products of Service include the following:
 - FOR SCOPE OF SERVICES**
 - At Completion of 35% Documents Phase (Schematic Design Phase):
 - Drawings
 - At Completion of 65% Documents Phase (Design Development Phase):
 - Drawings
 - Technical Specifications (outline)
 - At Completion of 100% Documents Phase (Construction Documents Phase):
 - Drawings
 - Technical Specifications
 - Construction Administration Phase:
 - Architect's Field Reports
 - Post Construction (Warranty Period) Phase:
 - Record Drawings
 - 11th Month Inspection Report

SERVICES NOT INCLUDED

- The Architect's fees do not include the following:
 - Preparation of Planning & Zoning applications, maps, etc. including annexation, Site Plan Review, etc.
 - Surveying, except as noted
 - Hazardous materials testing/inspection (Asbestos, Lead, Mold, Etc.)
 - Environmental Investigations (Phase I or Phase II)
 - Geotechnical Investigations, except as noted
 - Acoustical Design
 - Interior Acoustic Design
 - Sound Isolation Design
 - Mechanical Noise & Vibration Control
 - Testing or Abatement Design for Hazardous Materials
 - Consultant other than those specifically listed above
 - Special Consultants
 - Furniture Fixtures & Equipment Design or Documents
 - Preparation of documents for Approvals required by Governmental Agencies, except as noted above.
 - Manual Distribution of Bid Documents
 - Plan Review Fees
 - Building Permit Fees
 - Printing, except as specifically noted herein
 - Construction Testing Fees
 - Specialty Inspections
 - Modifications to the documents or repair detailing that are the result of contractor quality control deficiencies
 - Models
 - Post Construction Services, except as noted herein
 - Presentation or Meetings with Government Officials, Financial Institutions, etc. except as noted herein
 - Utility water, sewer, or natural gas piping further than 5 feet outside the building including landscape irrigation.
 - Ground source heat pump system design including loop field design.

- Fire sprinkler design
- Energy modeling
- Life cycle cost analysis of multiple mechanical systems
- LEED Documentation
- Detailed Quantity Take-off Construction cost estimates
- Commissioning of the mechanical systems
- Ground Vibration Testing and Recommendations
- Testing and analysis of ground borne environmental vibrations
- Exterior Sound Isolation Design
- Detailed Analysis of Environmental Noise (Cadna Model)
- Security Design
- Travel outside Cheyenne, Wyoming
- Professional Liability Coverage beyond limits noted below

The services noted above may be requested by the Owner as Additional Services.

LIMIT OF LIABILITY

- The Owner agrees, to the fullest extent permitted by law, to limit the Architect's total liability to the Owner, and to all the construction contractors and subcontractors on the project, for any and all injuries, claims, losses, costs, damages, or claims expenses from any source or causes, so that the total aggregate liability to the Architect to all those named shall be limited to the Architect's net fees, excluding consultants and reimbursable expenses. Such causes include, but are not limited to, negligence, error or omissions, strict liability, breach of contract or warranty.

INSURANCE

- Professional Liability Insurance:
 - TDSi currently carries a Professional Liability insurance policy provided by CNA through Victor Insurance Managers Inc. / Continental Casualty Company. The policy is a "claims-made" policy with a maximum limit of liability of \$1,000,000 per claim, with an aggregate limit of \$2,000,000 per year. Our firm has never had a claim against our policy. A Certificate of Insurance will be provided upon written request.
- General Business Liability Insurance:
 - TDSi carries a General Business Liability policy provided by AMCO Insurance Company and Allied Insurance Company of America. A Certificate of Insurance that enumerates the various coverage limits will be provided upon written request.

TDSi HISTORY AND NOTED PROJECT EXPERIENCE:

TDSi is a local Cheyenne architectural firm, with a 24-year history of professional design services that integrate quality architecture, sustainable design, and a high level of client service. Our portfolio includes recreational facilities, K-12, higher education, mixed-use developments, large new commercial construction projects, renovation projects, master planning and historic restoration work.

A FEW THINGS SET OUR DESIGN TEAM APART:

LOCATION | we believe it is important for the Design Team to be proximate to the project site to be able to respond to the Owner's and User's needs throughout the project - it will be essential that the Architect and consultants be accessible and be on-site on a regular basis – from the inception of the design phase through the completion of the project and the warranty phase - TDSi and the majority of our consultants are local and able to visit the project site easily;

FAMILIARITY WITH PROJECT | TDSi and our Design Team’s previous experience and involvement with similar projects like this project will be a considerable advantage as the project moves forward.

EXPERIENCE | one of our Design Team’s strengths is our experience - TDSi’s experience, now spanning 24 years of diverse project types, is supplemented with similar experience from the consultants on our Design Team. Our experience includes numerous projects similar to the proposed various projects at the Historic Cheyenne Depot;

FAMILIARITY WITH CITY REQUIREMENTS | Our Design Team works with City of Cheyenne Requirements on a regular basis – including City of Cheyenne and Board of Public Utilities Construction Specifications and Standard Drawings, current building code requirements etc. Members of our Design Team have been involved with building code adoption committees, UDC development committees and Building Code Board of Appeals, and the Historic Preservation Board of Cheyenne.

CREATIVITY | TDSi has a proven record of creative and skilled problem solving; providing Owner’s with unique solutions founded on creative responses to program needs, project constraints and identified opportunities. As important as our Team’s experience and capabilities are, we know that they are no more important than how well we listen to the Owner’s and User’s needs. Only by being attentive listeners can we learn and understand your objectives, and help you optimize the opportunities for success. The final product must ultimately reflect and support the Community Recreation and Events Department mission, vision, character, and commitment to quality. Our Design Team is committed to being part of that success. Thank you for your consideration of our Design Team for this project. We look forward to the next steps in your selection process.

- TDSi noted Historic Architectural Project Experience:
 - Cheyenne Historic Train Depot Renovation (2024)
 - Cheyenne Historic Pumphouse Renovation
 - First Presbyterian Church Renovation and Addition
 - Dinneen Building Addition and Renovation
 - St. Mary’s Cathedral Renovation
 - Nagle Warren Mansion Renovation
 - First United Methodist Church Addition and Renovation
 - Elk Mountain Hotel Renovation
 - Elk Mountain, Wyoming
 - University of Wyoming Historic Preservation Plan

TERM OF PROPOSAL

✚ This proposal will be valid 60 days from issuance.

Submitted By:



Will Byers, Associate AIA
TDSi Associate
for the firm